
2:00 PM **LINE 4**

24-CIV-03850

ROBERT M. KEARNS VS. ROBERT LAWRENCE ROSENBERG, ET AL

ROBERT M. KEARNS
ROBERT LAWRENCE ROSENBERG

CARTER M. ZINN

DEFENDANT'S MOTION TO COMPEL NEUROPSYCHOLOGICAL EXAMINATION OF PLAINTIFF ROBERT M. KEARNS

TENTATIVE RULING:

Defendant Estate of Robert Lawrence Rosenberg (deceased)'s unopposed motion for an order compelling plaintiff Robert M. Kearns to attend and complete a neuropsychological examination with Dr. William McMullen, a clinical neuropsychologist, and to permit the exchange of raw data and audio recording of the examination only between defendant's expert and a neuropsychologist or other similar expert retained by plaintiff, and not to plaintiff's counsel, is **GRANTED**.

Defendant's request for judicial notice of seven exhibits is **GRANTED**. (Evid. Code §§ 452, subd. (c); 453.)

A. Background

This case arises from an injury accident between plaintiff, a cyclist, and defendant who was driving a motor vehicle. The complaint alleges complex injuries including orthopedic injuries and a brain injury, allegedly involving cognitive and behavioral impairments. Plaintiff also alleges ongoing orthopedic, neurological, and psychological complaints and the need for future treatment regarding these complaints.

Plaintiff has agreed to attend a defense neuropsychological exam, however a dispute remains as to the parameters of the exam, giving rise to the instant motion. Pursuant to Code of Civil Procedure, section 2032.320, subdivision (a), defendant asserts good cause exists for plaintiff to submit to the neuropsychological exam but seeks to protect the integrity of test materials, audio files, and disseminate raw data and audio recording of the testing part of the examination only to an expert retained by plaintiff, and not to plaintiff's counsel.

B. Legal Standard

A defendant generally may obtain a mental examination of a plaintiff if the plaintiff has placed his or her mental condition in controversy. (Code Civ. Proc. § 2032.020, subd. (a).) To do so, a defendant must seek leave of court by motion pursuant to Code of Civil Procedure section 2032.310, subdivisions (a) & (b), as defendant has done here.

C. Discussion

It is undisputed that plaintiff has placed his cognitive functions and abilities at issue and that defendant therefore is entitled to ask plaintiff to submit to an appropriate medical examination. (Code Civ. Proc. § 2032.020 subd. (a).) Under Code of Civil Procedure, section 2032.530, subdivision (a), both the examiner and examinee have the right to an audio recording of the testing part of the examination. The primary issue before the court is whether the test materials and test data will be released to plaintiff's counsel or only to an expert retained by plaintiff who may then review the data with plaintiff's counsel.

As noted above, this motion is unopposed. Defendant's position is that the disclosure of the requested documents is, at the least, oppressive and burdensome on Dr. McMullen as a licensed professional with a longstanding ethical duty to maintain test materials in confidence to preserve the validity of the results of such tests. Defendant also argues that releasing test procedures to non-psychologists can threaten test security.

Randy's Trucking, Inc. v. Superior Court (2023) 91 Cal.App.5th 818, the leading authority on this question, recognizes that trial courts have discretion to grant such motions. Here, plaintiff has not filed an opposition nor proposed a protective order. There is no reason to believe that issuing an order directing that the data should be provided only to plaintiff's expert, once that person is retained, and not to counsel, will negatively affect plaintiff's trial preparation. Accordingly, the court finds there is good cause to grant the motion because plaintiff has placed his current and future cognitive functions and abilities at issue. Further, the parameters placed on sharing of the data acknowledge the sensitivity of the materials and audio recording, while giving plaintiff appropriate access to the information. Moreover, this order does not preclude plaintiff from requesting a written summary of the results of Dr. McMullen's examination of plaintiff, and any opinions he formed as a result of that examination.

If the tentative ruling is uncontested, it shall become the order of the court. Thereafter, defendants' counsel shall prepare a written order consistent with the court's ruling for the court's signature, pursuant to California Rules of Court, Rule 3.1312 and Local Rule 3.403(b)(iv), and provide written notice of the ruling to all parties who have appeared in this action. The order should be e-filed only, do not email or mail a hard copy to the court.

2:00 PM **LINE 5**

24-CLJ-07838

CAPITAL ONE N.A. VS. ERIN K SULLIVAN

CAPITAL ONE N.A.
ERIN K. SULLIVAN

ALEXANDER BALZER CARR
PRO PER

PLAINTIFF'S AMENDED MOTION FOR ORDER THAT MATTERS IN REQUEST FOR ADMISSION OF TRUTH OF FACTS
BE DEEMED ADMITTED

TENTATIVE RULING:

Capital One, N.A.'s Amended Motion for Order that Matters in Request for Admission of Truth of Facts Be Deemed Admitted, Set One, is **GRANTED**.

Plaintiff has not provided the correct address for the hearing. Department 28 is located at the Central Courthouse, Courtroom I, 800 North Humboldt Street, San Mateo, CA 94401. (*See* Cal. Rules of Court, Rule 3.1110 [the Notice "must specify" the location of the hearing].)

Plaintiff's counsel, Gregory Parks, states in his declaration that on January 7, 2025 plaintiff served its Requests for Admissions, Set One, on defendant by mail. (Parks Decl., ¶ 2, and exh. 1.) Mr. Parks further declares that "[p]laintiff has received no response to these requests for admissions." (*Id.*, ¶ 3.) "Therefore, plaintiff requests that the truth of facts specified be deemed admitted." (Mot., at p. 4.)

Code of Civil Procedure, section 2033.280, subdivision (b), provides that if a party to whom requests for admission have been directed fails to serve a timely response, the requesting party may move for an order that the genuineness of any documents and the truth of any matters specified in the requests be deemed admitted. If the moving party makes a request for an order deeming responses admitted the court is required to grant such motion unless it finds that before the hearing on the motion the party to whom the requests for admission have been directed has served a proposed response to the requests for admission that is in substantial compliance with Code of Civil Procedure, sections 2033.210–2033.230. (Code Civ. Proc. § 2033.280, subd. (c).)

It is well-settled that once a timely motion to compel has been filed, the burden is on the responding party to justify any objection or failure to fully answer the interrogatories. (*Coy v. Superior Court of Contra Costa County* (1962) 58 Cal.2d 210, 220-221.) To do so, the responding party must affirmatively show that the burden of responding would be so great, and the benefit of the information sought would be so minimal, that it would defeat the ends of justice to require the party to answer. (*Columbia Broadcasting System, Inc. v. Superior Court* (1968) 263 Cal.App.2d 12, 19.)

Defendant Erin K. Sullivan did not request an extension, failed to serve anything by the response deadline, and to date has served no responses. Nor has she filed a brief in opposition to the instant motion. In the complete absence of Sullivan's response and on the presence of plaintiff's request, the court must grant the motion to deem responses to the requests for
